

# OpenAI

## ***API Services Agreement***

|               |                                 |
|---------------|---------------------------------|
| Customer      | Northstar Analytics, Inc.       |
| Vendor        | OpenAI Services LLC             |
| Billing model | Usage based, monthly in arrears |
| Unit          | API unit                        |
| Term starts   | January 1, 2026                 |

### **1. Definitions**

In this Agreement, Customer means Northstar Analytics, Inc. and Vendor means OpenAI Services LLC. Services means the products and services described in the applicable order. Effective Date means the date on which both parties have signed the Agreement.

### **2. Services**

Vendor will provide the Services in accordance with the applicable order and this Agreement. Customer may use the Services for its internal business purposes and may permit its employees and contractors to use them on its behalf.

### **3. Term and Renewal**

This Agreement begins on the Effective Date and continues for the initial term stated in the order. Unless either party gives written notice at least thirty days before the end of the term, the Agreement renews for successive periods of equal length.

### **4. Fees and Payment**

4.1 Customer pays \$0.016 per API unit consumed.

5.2 Effective September 1, 2026, the usage rate increases by 25 percent from \$0.016 to \$0.02 per unit.

4.3 Fees are due net 30 from the invoice date. Late amounts accrue no interest.

### **5. Confidentiality**

Each party will protect the other party's confidential information using the same care it uses for its own, and no less than reasonable care. Confidential information may be disclosed only to personnel who need to know it and are bound by similar duties.

### **6. Warranties**

Vendor warrants that the Services will be performed in a professional manner and will materially conform to the documentation. Except as stated, the Services are provided as is, and each party disclaims all other warranties to the extent permitted by law.

## **7. Limitation of Liability**

Neither party is liable for indirect, incidental or consequential damages. Each party's total liability arising out of this Agreement is limited to the amounts paid or payable by Customer in the twelve months before the event giving rise to the claim.

## **8. Termination**

Either party may terminate this Agreement for material breach that remains uncured thirty days after written notice. On termination Customer will pay all fees for Services delivered through the termination date.

## **9. General**

This Agreement is governed by the laws of the State of Delaware. It is the entire agreement between the parties on its subject and may be amended only in a writing signed by both parties. Notices must be sent to the addresses in the order.